

Introduction

Though formality in the eyes of the state may be the sole purview of the well-resourced, license to plan a space extends much farther. Maintained by scholars, governments, developers, and nonprofit organizations alike, discourse on housing informality has placed urban informality in opposition to the idea of planning. I challenge this paradigm by pointing to the contrasting cases of the United States and Brazil—two countries with similar histories of colonization and similar modern status as global economic powerhouses, but strikingly different trajectories in the development of their respective planning systems (and, in turn, the role urban informality plays in each system). The highly formalized U.S. planning and property rights regime, by excluding the possibility of forms of development alternative to the liberal concepts of public and private property, fails to plan for market failures; in the U.S., these failures are answered by the informality of homelessness. The Brazilian planning system, in which informality is deeply embedded to the point that it has made itself part of the development process, tacitly allows for communities with needs unmet by the private market or the government to organize to build their own housing. Answering Roy's (2003) call to “ask third world questions of the first world”, I outline the development of and contemporary challenges to these two systems and compare them to argue that urban housing informality, rather than existing outside of planning, represents an avenue for mass participation in planning by disadvantaged communities in the face of market (and even government) exclusion.

Before discussing the particular cases of the U.S. and Brazil, it is important to look to existing literature on spatial planning and the state of global informality in order to contextualize my discussion and introduce key frameworks used in my analysis. The most fundamental question to be answered in this context is what planning is. Of the vast number of answers that exist, I will be using Nadin et al.'s (2018, p. viii) definition of a planning *system*—an “ensemble of institutions that are used to mediate competition over the use of land and property, to allocate rights of development, to regulate change and to promote preferred spatial and urban form”. In describing what a planning system is, it identifies 1) what counts as planning and 2) who counts as a participant in the planning process, emphasizing the presence of networks of multiple actors (Healey, 1998; Restrepo-Mieth, 2023). As this definition also allows for the variety of scales, functions, and instruments involved in different planning systems, it provides the flexibility to input information about particular contexts necessary for a comparative analysis (Nowak et al., 2024). Most importantly, by pointing out a tension between what planning is and who plans, it invites scrutiny of the on-the-ground reality: not all actors within a planning system necessarily have the capacity to actually enact their objectives, and may or may not be involved in de facto planning practices that are not outlined, but are nonetheless essential to the functioning of a planning system (Roy, 2009; Sykes et al., 2023). Of the many components of this on-the-ground reality, informality draws intense interest while eluding easy definitions—a flexibility that perhaps adds to its allure (Marx, 2018). Discussions surrounding informality have shifted since its conception in the mid- to late-twentieth century as an economic sector to more contemporary examinations of different aspects of the informal economy and informality as an economic process and political strategy existing on a spectrum from less to more formal, with all social groups to some extent participating in informal economic activities for their own ends (Banks et al., 2020). Therefore, it becomes necessary in contemporary scholarship to draw lines around the *type* of informality being analyzed. Discussion of housing informality in particular has historically been defined by location and lack: seen as a phenomenon of the Global South, generated by the inability of cities with limited state planning capacity to deal with an influx of migration of workers from rural areas in search of jobs in burgeoning industrial sectors (UN Habitat, 2009), with the vision of an informal housing situation finding itself exemplified in the urban slum—something defined by UN Habitat (2003) on the household level as experiencing one or more deprivations of water, sanitation, living area, structural integrity, or tenure security. At its most basic level, it became seen as a failure or absence of planning, a symptom of inadequate governance to provide for the welfare of the urban poor and something that could and should be “swept away” (Watson, 2009) along with poverty itself through demolition or efforts toward formalization (de Soto, 2003). This view of urban informality as nuisance—something that “[has become] the “other” to planning’s ordered, neat spaces and thereby

created as a policy problem” (Porter, 2011: 116)—is still prevalent in urban planning and policy practice and will be something I return to later in my analysis (Duminy, 2011). However, recent scholarship has since shifted away from this view of housing informality, moving to emphasize the nature of informal housing as being to various extents outside or contrary to legal systems and examine informal communities’ roles as actors who negotiate with public and private agents to create systems of planning in many cities across the world (Bhan, 2019; Fadaei, 2018; McFarlane, 2012; Mrani et al., 2025; Porter, 2011; Roy, 2005; Roy, 2009; Watson, 2009). Though this wave, too, has predominantly concentrated on the role of informality in the Global South, the scholarship has seen an emergence of interest in the presence of informality in the Global North and how certain modes of informality are more or less frequently distributed in certain parts of the world depending on the way they interact with the region’s planning systems, creating an increasingly transnational flow of knowledge between the Global North and South (Can, 2019; Durst and Wegmann, 2017; Devlin, 2018; Harris, 2018; Jaffe and Koster, 2019; Roy, 2003). My analysis seeks to continue in this vein by exploring the different housing provisions (or lack thereof) secured by the propertyless operating within different paradigms of propertied and unpropertied citizenship as identified by Roy (2003), who in “asking third world questions of the first world” explores the exclusion of the propertyless—and therefore homeless—from U.S. citizenship from the point of view of informal housing residents in the Global South.

Finally: why the U.S. and Brazil? The ground for comparison lies in their difference. They share surface-level characteristics: both are settler colonies in the Americas with extensive histories of both socioeconomic and racial inequality associated with the legacy of large-scale plantation agriculture founded on the theft of land from indigenous peoples and trans-Atlantic slave trade in colonial periods. Both have developed into some of the largest national economies in the world based on historical and present-day industrial and service sectors (Blackhawk, 2012; Graham, 1981; Shatz, 2016; Smith, 2014). However, these two countries exhibit three differences crucial to my analysis. The U.S. is widely regarded as belonging to the Global North, with a strong state capacity and a tradition of highly valuing individual access to property; most scholarship recognizes Brazil, on the other hand, as being part of the Global South, with a moderate state capacity and irregular system of land ownership (Damasceno Costa et al., 2017; Dirlik, 2007; UN Habitat, 2009; Sykes et al., 2023). These differences have created two countries that experience informality in drastically different modes: the propertyless in the U.S. are ultimately the homeless, while propertylessness in Brazil typically results in the development of informal settlements.

The U.S. Context

The ethos of private property in the United States orbits around the certainty of private property—in particular, the home—as both a man’s castle and, in many ways, part of his rights and identity as a citizen. It would not be an exaggeration to say that the ideal unit of American life, in both the popular imagination and that of the law, is a self-sufficient household living on land it owns—encapsulated most basically in William T. Sherman’s promise of “forty acres and a mule” to all new freedmen following the Civil War as a basic provision of citizenship, given to fully integrate formerly enslaved people into the American project (Amar, 1990; de Soto, 2003). The origins of this attitude toward private property lies in the historical patterns of American settlement. In early years of colonization, the application of the doctrine of *terra nullius* (a land without people) to the Americas created an extremely low barrier to entry for the acquisition of property, allowing any white male with means of passage across the Atlantic to set sail for a freehold (Estes, 2017). This availability of freeholds connected to political interest by those involved in the drafting of the U.S. Constitution and Bill of Rights in Lockean ideas of government as responsible for the protection of property as an individual liberty, as well as the classically “Jeffersonian” articulation of the yeomen farmer as independent from reliance on government and thus foundational to democratic institutions. Both ideas not only found their way into the Constitution’s Fifth Amendment—ultimately interpreted as prohibiting expropriation of property without compensation—but also American political thought at large (Griswold, 1946; Jacobs, 2009; Roulier, 2018). These ideas remained predominant as reasoning for federal support in American westward

expansion through the violent expulsion of indigenous peoples, and the resulting simulation of a virtually infinite supply of land for settlers allowed for inexpensive plots of land to remain widely accessible until the turn of the twentieth century (Blackhawk, 2012; Tsosie, 2000). Since the closure of the frontier and turning of attention to existing land management through systems of land use zoning, which have become a dominant instrument of planning in most localities across the U.S., the ideal of obtaining a property of one's own has remained at the forefront of the American imagination to the point of cliché, with the intensely racist legacies of exclusionary zoning, redlining, and urban renewal still scarring the country as testaments to the violent, nearly century-long push of white home buyers to “make way” for what they envisioned as the ideal residential environments. (Hirt, 2013; Manville et al., 2020; Whittemore, 2020; Wegmann, 2019).

The modern U.S. planning system has evolved to protect this ideal of homeownership, something so fundamental in American culture as to make up the American dream in the minds of many even in the wake of mounting barriers to homeownership in the twenty-first century (Adams, 2008; Goodman and Mayer, 2018; Xu et al., 2015). Characterized by decentralization and a high degree of formality, with prescriptive land use zoning codes administered and negotiated by local governments, American planning has created a housing landscape that (although challenged in recent decades) continues to favor strict use division and sprawl through the dominance of the single-family, or R-1, zoning (Sykes et al., 2023; Wegmann, 2019). Indeed, the ideal of American homeownership is virtually synonymous with the single-family home, with Hirt (2013, p. 304) going so far as to argue that “insulating America’s hallmark housing form—the detached single-family home—from intrusion was U.S. zoning’s original primary purpose”. The state of the U.S. planning system—one that overwhelmingly defines the boundaries of the legal, and thus the formal, as centering property—combines with core American political conceptions of property ownership as a hallmark of citizenship to create what Roy (2003) refers to as a “paradigm of propertied citizenship”: “a model, defining the elements of model citizenship—in this case, the rights-based relationship between individual and state” (p. 464). The lease of property, by attaching a renter to owned property and acting as a perceived stepping stone to ownership, is still participation in this paradigm—if you can’t own a home to participate in American adulthood, you can “at least” rent one (Tyndall and Christie-Mizell, 2016; Xu et al., 2015). In the United States, to be a citizen is to have property of some kind.

Because the American planning system—and, indeed, the fundamentals of American citizenship—is by and large *for* private residents, the existence of homelessness necessarily presents a problem. Kawash (1998, p. 335) notes that in the United States, “homelessness is defined in relation to private property; that is, homelessness is houselessness”. If you reside in the U.S. without being attached to some kind of private property, whether your own or someone else’s, you are homeless (Baron, 2004). There is no spectrum in this distinction: a homeless person exists at all times in the domain of the public with little to no recourse to informal shelter. Squatting is repressed (Herbert and Ricketts, 2025); tent cities are rarely tolerated and frequently subject to disbandment (Loftus-Farren, 2011; Przybylinski, 2021); even the transience of car homelessness risks trespassing charges (Giamarino, 2024). Yet, Kawash (1998) points out, the homeless are not *of* the public: “to be without a home is to be without that domain of the private into which the public subject is supposed to be able to withdraw; to be homeless is thus to be thrust into the public without recourse” (p. 325). Their presence becomes alien, filthy, hostile, and objectionable to a public which is composed of respectable, propertied citizens, and thus must be denied:

Without a proper place, the homeless body is obliged to become small, to minimize its surface, its extension. Such a demand is reflected in urban policies for “containing” the homeless, which are based on the principle of constriction. If the homeless population cannot be eliminated or erased, then at least it can be shrunk down, isolated, and contained so that the public need not feel the pressure of its presence. (Ibid., p. 330)

Among these efforts at containment, many of the more concrete benefits of citizenship, supposedly decoupled from property, nonetheless become difficult or impossible to access: participation in systems of

employment, ability to make oneself heard in the political arena, and enjoyment of public space in its most basic sense, among many others (Howard, 2013). As argued by Przybylinski (2021), “to the extent that ‘proper’ citizenship remains grounded in an individuals’ capacity for self-governance, self-ownership, and economic independence, the struggle for property-security is also a struggle for rights of political autonomy and representation”.

The Brazilian Context

The evolution of land rights and history of profound wealth inequality in Brazil has created a highly stratified system where, even today, there remain significant barriers for many disenfranchised households to access traditional forms of private property, creating an environment of semi-tolerance of informal land occupation. Following the violent occupation of indigenous lands by the Portuguese at the turn of the sixteenth century, the institution of *sesmarias*—tracts of land granted by the Portuguese monarchy for purposes of large-scale resource extraction that would be returned if certain conditions of productivity were not fulfilled within a certain period of time—land became a commodity essentially reserved for the wealthy, with poor settlers turning to the occupation (*posse*) of small plots on the fringes of *sesmarias*. This practice of *posse* would become a consistent feature of the lower classes’ relationship to property throughout the country’s history and into the modern day: though Brazil would become independent from Portugal in 1822 and experience a number of political upheavals and regime changes in the centuries following, including those that attempted the introduction of land reform policies, informal occupation and development remained a widespread as a strategy for the poor—primarily formerly enslaved people and landless peasants, who lacked the funds for the purchase of land—to access property (Damasceno et al., 2017). *Posse* continued to dominate in the twentieth century as low-income populations in urban areas swelled as a result of large-scale migration for industrial job opportunities, illegally occupying and building on both public lands and undeveloped private properties under the eye of a public sector with highly limited resources (and willingness) reserved for adequate planning (Rocco et al., 2019). By the twenty-first century, a number of favelas had formed from large, built-up concentrations of informal housing on the urban fringe (Macedo, 2008). Though it is by no means a secure form of land tenure, as residents without formal claims to the land they use live under the constant threat of eviction and the demolition of their homes, *posse* is nonetheless an extremely pervasive and officially-recognized (though nevertheless informal) form of land occupation in Brazil that has come to be tolerated by various levels of government as well as private landowners on a regular basis (Damasceno Costa et al., 2017; UN Habitat, 2005).

The modern-day Brazilian planning system has been characterized by a general movement away from top-down, formality-oriented modes of land use planning imported from the Global North and toward more flexible systems that emphasize locally-oriented, bottom-up forms of planning that acknowledge widely varying local government capacities. The mid-twentieth century saw severely overburdened planning systems struggling to keep up with explosive urban growth with instruments that frequently fell short (for example, incomplete land registers) and, in their efforts to enforce a highly-formalized property market in urban spaces, unintentionally created the conditions for the growth of squatter settlements (Schmidt, 1982; Sparovek et al., 2019; UN Habitat, 2009). The 1988 Brazilian Constitution, recognizing the failures of this mode of planning, introduced in its urban policy articles the social function of property, recognizing property as a means to access a number of rights as a citizen (Macedo, 2008; Ondetti, 2016). The 2001 City Statute created concrete mechanisms through which local governments could enact that social function. As described by Rocco (2019, p. 431):

...the main policy goals of spatial planning in Brazil concern devolution, redistribution and social sustainability through participatory tools, with the overarching aim of achieving social justice and fair distribution of societal gains. This is done through participatory mechanisms and innovative concepts embedded in law, such as the social function of property. These instruments...do not guarantee that their principles are

followed by local administrations...But they do serve as a basis for the organized social movements that agitate for citizens' rights. These concepts have prompted the enactment of local legislation that varies considerably from place to place.

One notable program embodying the ethos expressed by the 1988 constitution and City Statute is the Special Zones of Social Interest (ZEIS) program, which attempts to regularize low-income urban areas while protecting them from the impacts of land speculation by marking them for social housing (Watson, 2009). Though the massive diversity present in Brazilian urban geographies affects the different abilities of governments to engage in participatory approaches and implement the decisions that come of them, the legal frameworks that shape planning practices in the country acknowledge and make space for the nuances inherent to cities with a history of extremely varied land occupation and different levels of formality.

This understanding of “semi-formality” in Brazilian planning, though not always entirely successful in fully integrating informal communities into the social fabric and infrastructure of an urban area, has nonetheless allowed for government support of informal spaces. Many informal settlements like favelas remain socially separated from formal urban spaces: cycles of crime, crackdowns from urban police forces, and retaliatory violence have created high rates of violence that foster concerns about the safety of favelas, while the persistence of stigmas surrounding poverty and informal development still affect the social visibility of informal spaces (Garmany, 2009; Kolling, 2019; Nelson, 2025). Informal developments also continue to lack access to utilities like electricity and running water (UN Habitat, 2009). However, the increased visibility of social movements advocating for the rights of informal communities, combined with increasing government action in areas like infrastructure upgrading, provide signs of a reality on the ground that has genuinely been impacted by a changing planning system (Abubakari, 2022; Stiphany et al., 2024). Brazilian policies—exemplified by the 1988 Constitution, City Statute, and ZEIS program—increasingly reflect an understanding that informal communities can be partners in the urban planning process. Despite the persistence of infrastructural and social challenges to informal communities, participatory frameworks that work alongside informality and seek to legitimize and protect spaces developed by the poor are increasingly enshrined in Brazilian legal codes and provide for an encouraging basis upon which future policies that further connect informal communities to their neighbors can be built.

“Asking Third World Questions of the First World”: The Blind Spots of Formality and Informality as Mass Participation in Planning

The extremely formalized U.S. planning regime excludes the possibility of propertylessness, thereby forcing the disenfranchised into positions outside of public tolerance as homeless bodies, while the acknowledgement of social “rights to the city” incorporated into the Brazilian planning system allows for the disadvantaged and propertyless to themselves participate in the process of planning—albeit to a limited and sometimes fragile extent. Allowing these different paradigms to pose questions to one another generates illuminating answers about who has the right to plan. Ananya Roy, in her 2003 examination of propertied citizenship as a U.S. paradigm, recalls the wondering of an informal resident of Calcutta named Ranjan at the possibility of homelessness in the United States (p. 469):

I have heard that there are lots of homeless in America. How can that be the case? Why doesn't the government simply allow them to simply take over vacant land like we have? Aren't they citizens? Don't they have rights? In the face of all my explanations, he insisted, “If one is a citizen, one can't be homeless.”

A similar question can be asked from the point of view of the Brazilian context, and an antithetical answer formulated. In the United States, the right of a citizen to participate in Nadin et al.'s (2018) actions of planning is only guaranteed by a formal access to property—something that cannot be guaranteed for the

vulnerable. Brazil, in opening the realm of the informal, sidesteps this dependency entirely: if you as a citizen cannot access citizenship rights through formal ownership, legal frameworks exist that allow informal ownership to suffice. As Roy (2003) notes, these transnational questions do not have simple answers: for example, simply allowing for Brazilian-scale informal development in the U.S. would simply exchange one paradigm that guards the safety of the propertied at the complete exclusion of the unpropertied for one that offers wider access to forms of housing that are not necessarily secure or of a high quality. However, what contrasting these national landscapes of formality *does* allow for is the examination of the basic nature of planning: if a highly formalized system fails to plan for certain members of society while another more accepting of informality invites (to some extent) the entirety of a population into the planning process, the proposition that urban informality represents “the absence of planning” comes under intense scrutiny.

Conclusion

Putting orthodox ideas about planning—in the case of this analysis, the placement of planning in opposition to informality—under a transnational lens can help researchers not only evaluate how true they are on a global scale, but also notice their conceptual shortcomings even on their “home turf”. In contrasting the state of urban informality in the United States and Brazil through the framework of Roy (2003), I describe how the propertyless in the U.S. are stripped of access to citizenship and membership in the planning public in the form of homelessness within a planning system that almost exclusively recognizes formality, while those in Brazil facing similar situations of propertylessness are, in their recognition by the state, permitted large-scale community participation in planning through informal development. With this comparative analysis, I have offered a rebuttal to Porter’s (2011, p. 166) discussion of informality as representing the “absence of planning”; I instead find that urban housing informality is not an absence of planning, but its active use by the public whose needs may not be entirely met (or met at all) through formal channels. Reframing informal development in this way provides an opportunity for planners to meet the public as partners in the planning process with not just knowledge of what they need out of a space, but also their own solutions for how to transform that space for the better.

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